

District- Cox's Bazar

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Misc. Case No. 74648 of 2023**In the matter of:**

An application under section 498 of the Code of
Criminal Procedure.

-And-

In the matter of:

Md. Sharif

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Md. Tariqul Islam, Advocate

.... For the accused-Petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 28th February 2024

This is an application under Section 498 of the Code of
Criminal Procedure for bail.

In this case under table 10(Ga) appended to Section 36(1) of the Madak Drabba Niyontron Ain, 2018 about 49,250 pieces of yeaba tablets was recovered from the possession of the petitioner.

In view of above materials on record we are not inclined to grant bail to the petitioner at this point of time but we feel it necessary to pass a direction upon the Trial Court below for conclusion of the trial of the case expeditiously.

Accordingly, we are directing the learned Additional Sessions Judge, 2nd Court, Cox's Bazar to conclude the trial of the case within 3(three) months from the date of receipt of this order without allowing any adjournment beyond 15(fifteen) days.

The days covered by the adjournment at the instance of the accused be excluded from above period.

But if the learned Judge fails to conclude the trial within above period he will have to explain in writing to this Court through the Registrar General, Supreme Court of Bangladesh as to why the trial could not be concluded.

The learned Judge shall also consider the petition for bail if any filed by the petitioners with sympathy and in accordance with law.

The Superintendent of Police, Cox's Bazar is directed to ensure that the prosecution witnesses are produced before the Trial Court on the date to be fixed by the Court without any fail.

Let copies of this order be sent to the Registrar General, Supreme Court of Bangladesh, learned Additional Session Judge, 2nd Court, Cox's Bazar and Superintendent of Police, Cox's Bazar at once.

With above direction this Rule is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER